

ASCI Advertising Standards

ASCI Code Truthful and Substantiated Advertising Claims

Title: Truthful & Honest Representation in Advertising

Jurisdiction: India

Category: Advertising

Source Citation: ASCI Code for Self-Regulation in Advertising, Chapter I, Clauses 1.1 to 1.5

Plain English Summary:

Advertisements must make truthful claims that can be objectively substantiated. For an Ayurvedic startup, claims about a product's efficacy, benefits, comparisons, or performance should be supported by appropriate evidence, and advertisements must not mislead consumers through exaggeration, omission, ambiguity, or misleading presentation.

The Exact Legal Text:

ASCI Code, Chapter I Truthful & Honest Representation

- 1.1.** Advertisements must be truthful. All descriptions, claims and comparisons, which relate to matters of objectively ascertainable fact, should be capable of substantiation. Advertisers and advertising agencies are required to produce such substantiation as and when called upon to do so by The Advertising Standards Council of India.
- 1.2.** Where advertising claims are expressly stated to be based on, or supported by independent research or assessment, its source and date should be indicated in the advertisement.
- 1.3.** Advertisements shall not, without permission from the person, firm or institution under reference, contain any reference to such person, firm or institution, which confers an unjustified advantage on the product advertised or tends to bring the person, firm or institution into ridicule or disrepute. If and when required to do so by The Advertising Standards Council of India, the advertiser and the advertising agency shall produce explicit permission from the person, firm or institution to which reference is made in the advertisement.
- 1.4.** Advertisements shall neither distort facts nor mislead the consumer by means of implications or omissions. Advertisements shall not contain statements or visual presentation, which directly, or by implication or by omission or by ambiguity or by

exaggeration, are likely to mislead the consumer about the product advertised or the advertiser, or about any other product or advertiser.

1.5. Advertisements shall not be so framed as to abuse the trust of consumers, or exploit their lack of experience or knowledge. No advertisement shall be permitted to contain any claim so exaggerated as to lead to grave or widespread disappointment in the minds of consumers.

Keywords/Triggers:

Ayurvedic advertising claims, substantiation of claims, misleading advertisement, therapeutic claims, efficacy claims, exaggerated claims, independent research claims, ASCI advertising code

ASCI Code Claims Directed at Vulnerable Consumers

Title: Advertising Claims for Health, Physical Attributes and Vulnerable Consumers

Jurisdiction: India

Category: Advertising

Source Citation: ASCI Code for Self-Regulation in Advertising, Chapter I, Clause 1.5(d)

Plain English Summary:

Advertisements directed at people suffering from illness, obesity, infertility, baldness, impotence, perceived physical inadequacies, or similar conditions require special care. For Ayurvedic products, health-related claims should not go beyond what is supported by generally accepted medical practice and the product's actual efficacy.

The Exact Legal Text:

ASCI Code, Chapter I, Clause 1.5(d):

Special care and restraint has to be exercised in advertisements addressed to those suffering from weakness, any real or perceived inadequacy of any physical attributes such as height or bust development, obesity, illness, impotence, infertility, baldness and the like, to ensure that claims or representations, directly or by implication, do not exceed what is considered prudent by generally accepted standards of medical practice and the actual efficacy of the product.

Keywords/Triggers:

Ayurvedic health advertising, illness claims, obesity claims, infertility claims, baldness claims, medical efficacy, vulnerable consumers, therapeutic advertising

ASCI Code Permitted Exaggeration / Hyperbole

Title: Permissible Advertising Exaggeration and Hyperbole

Jurisdiction: India

Category: Advertising

Source Citation: ASCI Code for Self-Regulation in Advertising, Chapter I, Clause 1.6

Plain English Summary:

Obvious exaggerations may be used for humour or attention only when consumers can clearly understand that the statement is not a literal factual claim. An Ayurvedic brand therefore should not rely on humorous wording to disguise a potentially misleading health or efficacy claim.

The Exact Legal Text:

ASCI Code, Chapter I, Clause 1.6:

Obvious untruths or exaggerations intended to amuse or to catch the eye of the consumer are permissible, provided that they are clearly to be seen as humorous or hyperbolic, and not likely to be understood as making literal or misleading claims for the advertised product.

Keywords/Triggers:

advertising exaggeration, hyperbole, humorous claims, misleading health claims, Ayurvedic advertising, literal claims, ASCI Clause 1.6

ASCI Code Social Media Advertising Disclosure

Title: Disclosure of Advertisements on Social Media

Jurisdiction: India

Category: Advertising

Source Citation: ASCI Code for Self-Regulation in Advertising, Chapter I, Clause 1.8 (updated July 10, 2025)

Plain English Summary:

Paid or promotional content on social media must be clearly identifiable as advertising and distinguishable from editorial or other content. This is particularly relevant when an Ayurvedic

startup uses influencers, creators, media pages, or its own social-media handles to promote products.

The Exact Legal Text:

ASCI Code, Chapter I, Clause 1.8:

Social media advertisements or promotions posted on the handles of media companies must be clearly identifiable and distinguishable from editorial or any other content. All such advertisements should add adequate disclosures upfront and prominently at the beginning of the post, such that audiences know they are interacting with an advertisement/promoted content.

The following is the list of disclosure labels permitted. Any one or more can be used:

- Advertisement
- Partnership
- Ad
- Free Gift
- Sponsored
- Platform disclosure tags
- Collaboration

Keywords/Triggers:

Ayurvedic influencer advertising, social media disclosure, sponsored post, paid promotion, ASCI influencer rules, advertisement disclosure, collaboration, social media claims